

THE KERALA FINANCE (No. 2) ACT, 2021

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State of Kerala - Act

THE KERALA FINANCE (No. 2) ACT, 2021

KERALA

India

THE KERALA FINANCE (No. 2) ACT, 2021

Act 9 of 2021

Published in Kerala Gazette 2601 on 2 September 2020

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ACT 9 OF 2021

THE KERALA FINANCE (No. 2) ACT, 2021

An Act to give effect to certain financial proposals of the Government of Kerala for the Financial Year 2021?2022.

WHEREAS, it is expedient further to amend the Kerala Panchayat Raj Act, 1994. (13 of 1994) and the Kerala Municipality Act, 1994 (

20 of 1994

) to give effect to certain financial proposals of the Government of Kerala for the Financial Year 2021-2022;

BE it enacted in the Seventy-second Year of the Republic of India as follows:?

1.

Short title and commencement.?

(1)

This Act may be called the Kerala Finance (No. 2) Act, 2021.

(2)

It shall be deemed to have come into force on the 10th day of June, 2021.

2.

Amendment of Act

13 of 1994

.?In the Kerala Panchayat Raj Act, 1994 (13 of 1994),?

(1)

in section 2, after clause (xviii) the following clause shall be inserted, namely:?

? (xviiiia) ?green building? means a building which is efficient in use of energy, water and other resources, promotes the use of renewable energy, reduces pollution, reduces waste generation, promotes waste segregation, reuse and recycle, optimizes energy efficiency, conserves natural resources, provides healthier spaces for occupants, provides good environmental quality, is considerate to the environment and quality of life of the occupants in respect of design, construction, operation, renovation and life cycle, promotes the use of non-toxic, ethical and sustainable materials adapts to a changing environment, built on a sustainable site, and designed or built to be climate resilient:

Provided that the Government may from time to time declare such other ecofriendly buildings as green buildings.

Explanation: ?A building of any occupancy may come under the definition of a green building. ?;

(2)

in section 203, in sub-section (7) after clause (vi) the following clause shall be inserted, namely:?

? (via) green buildings as specified in clause (xviiiia) of section 2?

3.

Amendment of Act

20 of 1994

.?

In the Kerala Municipality Act, 1994 (

20 of 1994

),?

(1)

in section 2, after clause (18) the following clause shall be inserted, namely:?

? (18a) ?green building? means a building which is efficient in use of energy, water and other resources, promotes the use of renewable energy, reduces pollution, reduces waste generation, encourages waste segregation, reuse and recycle, optimizes energy efficiency, conserves natural resources, provides healthier spaces for occupants, provides good environmental quality, is considerate to the environment and quality of life of the occupants in respect of design, construction, operation, renovation and life cycle, promotes the use of non-toxic, ethical and sustainable materials adapts to a changing environment, built on a sustainable site, and designed or built to be climate resilient:

Provided that the Government may from time to time declare such other ecofriendly buildings as green buildings.

Explanation: ?A building of any occupancy may come under the definition of a green building. ?;

(2)

in section 233, in sub-section (7), after clause (vi) the following clause shall be inserted, namely:?

? (via) green buildings as specified in clause (18a) of section 2.?

4.

Validation.?

(1)

Notwithstanding the lapse of the Kerala Finance (No. 2) Bill, 2021 (Bill No. 281 of the Fourteenth Kerala Legislative Assembly) (hereinafter referred to as the said Bill) and the cesser of force of law of the declared provisions of the said Bill, anything done or any action taken, including levy and collection of tax or duty, during the period from the 1st day of April, 2021 to the 9th day of June, 2021, by virtue of the declared provisions contained in the said Bill, under the Kerala Panchayat Raj Act, 1994 (

13 of 1994

) or under the Kerala Municipality Act, 1994 (

20 of 1994

) as they stand amended by the said Bill, shall be deemed to be and to have always been, for all purposes, validly and effectively done or taken under the provisions of the respective Acts, as if the said amendments had been in force at all material times.

(2)

Notwithstanding anything contained in the respective Acts during the period from 1st. day of April, 2021 to the 9th day of June, 2021 during which the declared provisions contained in the said Bill was in force, anything done or any action taken by virtue of said provisions of the said Bill, shall be deemed to have been validly done or taken under the respective Acts.

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